

From: Lowe, Claire (EGLE)
Sent: 10/9/2024 12:26:03 PM
To: "Elaine J. Venema" <evenema@fveng.com>
Subject: IU Permit notes
Attachments: Cadillac WWTP IU Permits comments summary.docx

Hi Elaine,

My notes for our meeting today on the permit reviews are attached, if they are helpful.

Claire Lowe

Environmental Quality Analyst

Water Resources Division, Gaylord District Office

Michigan Department of Environment, Great Lakes, and Energy

[989-330-4639](tel:989-330-4639) | LoweC9@Michigan.gov

Michigan.gov/EGLE



MICHIGAN DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY



ATTACHMENT NAME:

Cadillac WWTP IU Permits comments summary.docx

ATTACHMENT TYPE:

Microsoft Office 12+, Office Open XML (OOXML/OpenXML): document (DOCX)

Cadillac WWTP IU Permits

All permits:

Application due date (renewal): The cover page of the permit includes a space for entering the due date for the submission of a permit application for reissuance. The instructions state this date should be at least 90 days prior to the permit expiration date. While the Cadillac SUO contains a requirement to submit a permit application (Sec 42-484 and 42-485) for an industrial user permit, the requirement is for only 60 days prior to connection for new sources. The SUO does not contain any requirement (that I could find) to apply for reissuance. It is recommended that the SUO is modified to include a requirement to apply for reissuance of the IU permit and a due date. If this is added to the SUO the language in the draft permit is acceptable.

Part 136: Part 1.C requires the user to perform analysis using methods approved under CFR Part 136. The reference is incomplete and must be corrected to include title 40, as 40 CFR Part 136 to ensure that the user is able to find the correct information.

Discharge prohibitions: Part 2.1 references chapter 42 of the SUO for a listing of the discharges that are prohibited to the sanitary sewer. That appears to refer to Sec. 42-337. This section contains the required specific prohibitions but does not include the general prohibition on the discharge of any pollutant that causes pass through (R 323.2303(1) and 40 CFR 403.5(a)(1)). The POTW must have the legal authority to require compliance with the applicable pretreatment standards, including the general and specific prohibitions. The SUO must be modified to include the complete general prohibitions. EPA guidance also recommends that the general and specific prohibitions are also directly included in the permit with the verbatim language from the SUO rather than by referencing the SUO.

Slug load reporting: The permit conditions do not include a requirement to immediately report any discharge that could cause problems to the POTW, including any slug loadings (R 323.2310(5)). This requirement must be added to the permit.

Unanticipated by-pass: Part 3.5.c.2 of the permit requires immediate notification of unanticipated bypasses. This exceeds the requirements of Part 23 (R 323.2316(2)-24 hours), however the Cadillac SUO only requires notification within 1 hour of becoming aware of the bypass. Therefore, there does not appear to be adequate legal authority to require immediate notification of unanticipated bypasses as required by the permit. Either the permit must be modified to conform with the legal authority or the SUO must be modified to provide sufficient legal authority for the permit requirement as stated.

Hazardous waste notification: Part 3.6 incorrectly references R 323.2310(5) for instructions on hazardous waste notification procedures. The correct reference is R 323.2310(15). Please correct the reference in the permit.

Changes in flow process or discharge : Part 3.7 of the permit includes notification requirements for changes in processes or expansions to the facility, changes in production for production-based or equivalent mass based limits, or changes in information that could change the CWF calculations. It is clear from this section that changes due to anticipated facility expansions or process changes are required at least 60 days prior to the change. It is not clear if this 60-day time frame also applies to other anticipated changes listed above because no other timeframe is given for these required notifications. The permit must include the requirement to immediately

notify the POTW of changes to the information used to calculate fixed alternative limits using the combined wastestream formula (R 323.2311(7)), if applicable. For permits with equivalent mass or contraction limits based on production-based limits, the permit must also require notification within two business days after the user has a reasonable basis to know that production level will significantly change within the next calendar month (R 323.2311(5)(g)).

Continuing Compliance Reports: Part 3.10 incorrectly states reports are due twice per month (June and December). The permit must be corrected to clarify the required reporting frequency.

Continuing Compliance Reports: Based on review of the draft IPP manual it was my understanding that Cadillac would require the users to complete and submit a standard reporting form as given in Appendix H. If this form is required to be used, it should be stated in the permit (and SUO) that it is required. If the reporting form is not required then the permit will also need to state other information that is required in the report. This would include the certification statement required under R 323.2310(11) and set forth in R 323.2311(2)(b)(ii), and specify the report must be signed by one of the people authorized under R 323.2310(11).

Records: Part 3.11 of the permit states that records are required to be kept for a period of three years but does not state what information must be included in the records. At a minimum, these records must include the date, place, method, and time of sample collection, and the person responsible for collecting samples (R 323.2310(14)(a)(i)), and the date and method of sample analysis, results of the analysis, and the person responsible for completing the analysis (R 323.2310(14)(a)(ii) – (a)(v)). As the user is also required to comply with the requirements of 40 CFR Part 136, the records should also include the information necessary to demonstrate compliance with those requirements (hold time, use of preservatives etc.) The permit must clarify what records are required.

Flow reporting: The permit template language does not clearly state what the flow reporting requirements are for non-categorical SIUs. Part 3.10, under continuing compliance reports, states “measured annual and maximum daily flow (in gpd) for each regulated process and other wastestreams as necessary to allow for the use of the combined wastestream formula”. As non-categorical SIUs have neither regulated process (categorical process) flows or wastestreams used in the CWF, there is no flow reporting requirement specified for these types of facilities. Flow reporting for non-categorical SIUs is required by R 323.2310(7) and must be included in the permit. Note that some SIU permits (AAR Fac) have another flow reporting requirement under Part 2, but most SIU permits do not.

Categorical Permits:

It isn't clear from the permits for AAR 6th street, AAR RT, and ARKWEL if there is combined flow for the categorical sampling points. For those permits with combined categorical and unregulated/dilution flow at the sample point the permit must require that either the user apply CWF or the City must calculate CWF alternative limits for inclusion in the permit. If appropriate flow monitoring is not present to calculate the CWF the permit should require installation of flow monitoring to allow this calculation or sampling points immediately downstream of the categorical process/treatment (if any).

AAR 6th Street:

Effluent limitations tables: The permit provides both categorical limits and local limits, as required. It is noted that the local limits in bold are the more stringent limits, however it is not clear if there is any flow to the sampling location other than the categorical process flow that would require CWF to be applied. If there is not, then I agree that the parameters in bold are more restrictive, except for available cyanide. The categorical limits include a total cyanide limit. While the local limit for available cyanide is much lower than the categorical total cyanide limit, it is not possible to determine compliance with the total cyanide limit by only testing for available cyanide, a sub-set of total cyanide. Total cyanide must be included in the sampling requirements table.

TTO limitation: The categorical TTO limit is not included in the sampling requirements, and it is noted a certification must be submitted to waive TTO monitoring. It is not clear if a TOMP has already been submitted and approved by Cadillac. If a TOMP has not already been approved, then the TTO monitoring requirement (frequency and sample type) must be included in the permit and the option to submit a TOMP given in the permit. The permit also requires annual submission of a certification letter. R 323.2310(6)(a) requires certification statements required by the categorical standards to be submitted in the semi-annual compliance report, therefore the permit must require this certification twice annually. The certification statement must match that given under 40 CFR 433.12(a). Unless this is provided to the user in a reporting form required by the permit then it is recommended that the permit include the statement or the reference to find the statement.

Flow reporting: Part 2.3 of the permit requires daily flow reporting to the City on a monthly basis. In addition, Part 3.10 of the permit also requires daily and maximum daily flow reporting for the categorical process and other wastestreams as needed for CWF in the semi annual report. Is Part 2.3 intended to require the total flow from the sample location? If the categorical flow is the only discharge to this outfall are these the same? I think Part 2.3 needs clarification about what flow monitoring is required.

AAR RT:

Facility address: AAR RT and AAR Fac are the same address – is there a reason this is permitted as two different facilities instead of just two different outfalls at the same facility? I think it's acceptable to do it this way, but seems burdensome for application, permitting fees, permit writing, reporting etc.

Effluent limitations tables: As with AAR 6th street. Is there any other flow other than the categorical wastestream? This information is needed to determine if the given limits are correct or need CWF adjustment

Only available cyanide is required to be monitored in the table. The categorical limits include total cyanide, so as with AAR 6th street this had to be added.

TTO limitation: It's not clear if a TOMP has been submitted and approved. If it has not, TTO needs to be included in the monitoring table until a TOMP is approved. As with AAR 6th street the annual TTO certification letter is insufficient. The certification statement must be submitted twice annually with the semi-annual report.

AKWEL:

Effluent limitations: Confirm that there is no wastestream other than categorical to any of the three outfalls. Confirmed with Elaine that there is combined flow for all three outfalls. CWF adjusted limits and flow monitoring are required for each outfall, or appropriate categorical sample points.

CCI:

Comment on the production reporting is wrong – the limits are not given as verbatim, they're based on the long term average production (scrubber volume of air scrubbed). Sent Elaine an email correcting this on 10/4/24.

Michigan Rubber:

This facility is listed as an SIU – no categorical limits. Confirmed that this is correct – the facility does not produce rubber parts, only assembles them, so this is correctly classified.